

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1509 of 2009

Shawakat Hossain Prodhan and others.

----- For the defendant-appellant-petitioners

=Versus=

Md. Ayub Haque Prodhan and others.

----- For the plaintiff-respondent-opposite-parties.

Mr. S.M. Bazlur Rashid, Advocate

----- For the petitioners

Mr. Abul Kalam Azad, Advocate,

----- For the opposite-parties.

Heard on 03.01.2017, 09.01.2017, 10.01.2017 and
Judgment on 25.01.2017.

At the instance of the present defendant-appellant-petitioners, Shawakat Hossain Prodhan and others, this Rule has been issued calling upon the opposite-party Nos.1-42 to show cause as to why the judgment and decree complained of in the petition moved in Court to-day should not be set aside.

This Rule is directed against the judgment and decree dated 28.01.2009 passed by the learned Joint District Judge, Panchagar allowing the appeal in part in Other Class Appeal No.53 of 2007 and thereby, affirming the judgment and decree in part and reversing the judgment and decree dated 03.05.2007 passed by the learned Assistant Judge, Tatulia, Panchagar decreeing the suit in Other Class Suit No.09 of 2007.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-parties as the plaintiffs filed the Other Class Suit No.9 of 2007 in the Court of the learned Assistant Judge, Tatulia, Panchagar seeking a declaration to set aside the judgment and decree passed earlier in the Title Suit No.48 of 1982 by the then learned Munsif Court, Panchagar, Dinajpur on 16.09.1982 decreeing the said suit exparte.

The plaint case is that one Asiruddin was the owner of the suit land appertaining to R.S. khatian No.271 Mouja Fetemagos Talluk Ghagra, Panchagar (previously District Panchagar). The said Asiruddin died leaving behind 3 sons Tumijuddin and others, wife Asma Khatun and daughter Jahura Khatun as his legal heirs. Tumijuddin sold 1.66 acres of land to the plaintiff No.1 on 06.03.1982. Tumijuddin and his mother Asma Khatun sold .41 acres to Alauddin, Sahadut and Moshia Rahman. The said Alauddin, Sahadut and Moshia Rahman died leaving behind plaintiff Nos.2-28 as their legal heirs. The said Tumijuddin and his mother Jahura Khatun sold .17 acres of land to one Eiad Ali died leaving behind the plaintiff Nos.40-42 as to the legal heirs. The aforementioned plaintiffs are possessing the land ejmali. One Rafiqueuddin as the predecessors of the defendant Nos.1-6 filed the Title Suit No.48 of 82 as vendor of the abovementioned land and the said suit was decreed exparte on 16.09.1982, which was not known to plaintiffs as they were not party. when the above

plaintiffs went for mutation they came to know about the abovementioned exparte decree.

The said suit was contested by the defendant Nos.1-10 by filing the written statement denying the statements made in the plaint contending, inter alia, that one Hedaiatullah was the originally owner of the suit land along with other land measuring 68.64 acres. One Naziruddin bought the said land on auction and the said land was given pattan on the 2nd Asar, 1348 B.S. by to Ojiuddin Prodhan for the land measuring 4.44 acres and the land was recorded in his name. During the period of S.A. khatian the land was wrongly recorded in the name of one Asruddin Prodhan also known as Asamuddin instead of Ojiuddin Prodhan. The said Ojiuddin Prodhan died leaving behind his son Rafiquuddin as his heirs. The said Asam Uddin tried to dispossess. The defendant came to know that S.A. recorded of right was published in the name of Asiruddin, therefore, the Title Suit No.48 of 1982 was filed against the heirs of Asam Uddin in the Court of the then Munsif, Panchagar wherein Tumijuddin, Jajura Khatun and Asma Khatun were made defendants. The mother and the sister of Rafiquuddin were also made the defendants. After service of the notices upon the defendants they appeared in the suit by filing a written statement and also sought adjournment on 15.09.1982 but the learned Judge by rejecting the said application passed the exparte decree on 16.09.1982.

After hearing the parties the learned trial Court decreed the Title Suit No.9 of 2007 (earlier Title Suit No.25 Of 2006) by his judgment dated 03.05.2007. Being aggrieved the present-plaintiff-petitioners preferred the Title Appeal No.53 of 2007 which was disallowed by the learned Joint District Judge, Panchagar on 28.01.2009. This revisional application has been filed challenging the said judgment of the appellate Court below and the Rule was issued thereupon.

Mr. S.M. Bazlur Rashid, the learned Advocate appearing for the present petitioners submits that the learned trial Court as well as the learned Appellate Court below committed an error of law resulting in an error in the decision occasioning failure of justice and therefore, the same is liable to be set aside by this Court. The learned Advocate also submits that the Title Suit No.48 of 1982, was filed by the petitioners on 20.02.1982, but the present plaintiff-opposite-parties purchased the land in question on 06.03.1982, which is subsequent to the filing of the earlier suit, as such it is presumed that the present plaintiff-opposite-parties were aware or had knowledge of the suit, but they filed the present suit in the year of 2006, which is seriously barred by limitation, as such, the suit was not maintainable, but the learned trial Court and the learned appellate Court failed to consider the above legal and factual aspects of the case, therefore, came to a wrong conclusion concurrently findings in favour of the present

plaintiff-opposite-parties, therefore, the impugned judgments are liable to be set aside and the Rule should be made absolute.

The Rule has been opposed by the present-plaintiff-respondent-opposite-parties.

Mr. Abul Kalam Azad, the learned Advocate appearing for the opposite parties submits that the learned trial Court has considered the evidence adduced and produced by the parties and came to a decision to decreed the suit filed by the opposite-parties, which was affirmed by the appellate Court below, but the present petitioner obtained the present Rule misleading the Court as to the evidence, therefore, the Rule is liable to be discharged. The learned Advocate further submits that the present suit was filed on 13.03.2006 after came to know of the decree passed in earlier Title Suit No.48 of 1982 when came to mutate their names on 09.03.2006, therefore, the suit was not barred under Article 95 of the Limitation Act.

The learned Advocate also submits that both the Courts below concurrently found that the present opposite-parties were not made the parties in the Title Suit No.48 of 1982 and therefore, notices were not served upon them, therefore, no question arises as to service of notices as per requirement under the Code of Civil Procedure. Despite, the fact, this land was recorded in the name of the predecessors of the present opposite-parties in the S.A. record, as such, the judgment and decree passed in the

Title Suit No.48 of 1982 is liable to be set aside, which is not binding upon the present opposite-parties as the plaintiffs.

Considering the above submissions made by the Advocates for the respective parties and also considering the revisional application under section 115(1) of the Code of Civil Procedure along with the annexures therein and also considering the materials in the lower Court records, it appears to me that the present opposite-parties as the plaintiffs filed the Title Suit No.25 of 2006, which was renumbered as Other Class Suit No.9 of 2007 seeking a decree for setting aside the judgment and decree passed in the earlier Title Suit No.48 of 1982, which was decreed on 16.09.1982 exparte.

The plaint case is that the present opposite-parties filed the present suit on 13.03.2006 after came to know about the decree in the Title Suit No.48 of 1982. The first question is to decide whether the suit is barred by limitation or not. In this regard, I have carefully examined the evidence produced by the parties. It transpires to me, that the earlier decree was passed in the year of 1982, which certainly beyond the limitation period, but under the provisions of Article 95 of the Limitation Act, the limitation period for filing a suit to set aside a decree obtained by practicing a fraud, relief must be sought within 3 years from the date when the fraud became to know to the party. In the present case, the plaintiff opposite-parties claimed that when they went to Tohsil Office under as the local Revenue

Office on 09.03.2006 at that time the plaintiffs came to know for the first time as to the judgment and decree passed exparte on 16.09.1982. In view of the above, I consider that the limitation has not started from the date of judgment and decree, but from the date of knowledge of the decree under the provision of Article 95 of the Limitation Act.

I have examined the factual aspects both of the parties and I have found that the present petitioner claimed that they are the successors of the auction purchaser of the suit land, but I found that the present defendant-petitioner failed to produce any document as to this auction purchase and the subsequent transfer of the suit land in their favour. Whereas, the plaintiff-opposite-parties adduced as many as 3 P.Ws and also filed the documents in support of their cases being exhibit 1 series to exhibit 5 series and from those exhibit it appears that the predecessors of the present opposite-parties had the record of right in the S.A. khatian, which is exhibited marked as 3(1). Moreover, the present plaintiff-opposite-parties produced document as to the record of right being rent receipt exhibits 4 & 4(1). The present plaintiff opposite-parties claimed their title through 3 deeds dated 19.12.1981 exhibit 1 07.01.1982 exhibit 2 and 06.03.1982 exhibit 1(kha) for their ownership upon the suit land.

Form the above given facts and evidence adduced by the way of documentary evidence and by way of deposition, I am satisfied that the plaintiff-opposite-parties have proved their case on the balance of

probability as to their claim to set aside the judgment and decree passed in Title Suit No.48 of 1982. Moreover, the present defendant-petitioner failed to produce sufficient evidence as to their entitlement upon the suit land in particular any pattan by Nazir Uddin, who purchased the land on auction, therefore, the predecessors of the present defendant-petitioner could not have any entitlement upon the land, therefore, the present petitioner certainly do not have any right upon the land.

I have carefully examined that the present plaintiff-opposite-parties were not made parties in the earlier Title Suit No.48 of 1982, therefore, the suit was not filed by the present defendant-petitioners with the clean hand, even though it was decreed exparte in favour of the present petitioner, as such, the suit decreed is liable to be set aside.

Now, I am inclined to examine the findings of the lower courts. The learned trial Court came to a conclusion decreed the suit in favour of the present plaintiff-petitioners on the basis of the following findings :-

“ কিন্তু বিবাদী পক্ষ সা-বক ৭৪৬নং খতিয়ান দাখিল ক-র প্রমা-ণ ব্যবহার ক-রননি। কা-জই হেদা-য়তুল্লা যে সা-বক খতিয়া-নর মালিক ছি-লন তা তারা প্রমান কর-ত পা-রননি। নালিশী সা-বক খতিয়া-নর জমি যে, নিলাম হয় তৎম-র্ম বিবাদীপক্ষ কোন নিলা-মর কাগজ দাখিল ক-রননি। তা-দর মৌরস যে পওন মূ-ল নালিশী খতিয়া-নর ৪.৪৪ একর জমি প্রাপ্ত হন সেই পও-নর কোন কাগজপত্র বিবাদীপক্ষ আদালতে দাখিল ক-র প্রমা-ণ ব্যবহার ক-রননি। বিবাদীপক্ষ শুধুমাত্র ৪৮/৮২ স্বত্ব মামলার আরজি, আদেশ ও ডিক্রির জাবেদা নকল দাখিল ক-র-ছেন। তাহাছাড়া ৪৮/৮২ স্বত্ব মামলার বর্তমান মামলার বাদী-দর মৌরসরা যে হাজির হ-য় সে সম্পর্কে কোন বিশ্বাসযোগ্য কাগজপত্র আদাল-ত দাখিল ক-রননি। বিবাদীপক্ষ তা-দর দাবীকৃত জমি বাবদ কোন খাজনার দাখিল ও আদাল-ত দাখিল ক-রননি। সুতরাং সার্বিক অবস্থা বি-বচনায় প্রতীয়মান হয় যে, বিবাদীপ-ক্ষর নালিশী জমি-ত কোন স্বত্ব দখল নেই।”

The learned appellate Court below concurrently found that the present plaintiff-opposite-parties could prove the wrongful decree in the Title Suit No.48 of 1982, however, the learned appellate Court did not concur finding with the learned trial Court as to the trial upon the suit land, because of the insufficient stamp (Court fees) by the present plaintiff-opposite-parties.

In this regard, I am of the view that the present-plaintiff-opposite-parties, in fact that made no prayer claiming title, but only to set aside the judgment and decree passed in the Title Suit No.48 of 1982 on the basis of the following finding :-

“ উল্লিখিতভা-ব বাদীপক্ষ মোট ২.৩৯ শতক জমি ভোগদখ-ল প্রাপ্ত হন। ৪৮/৮২ নং স্বত্ব মোকদ্দমায় ২৮/২/৮২ইং তারিখে দায়ের হয়। বিজ্ঞ বিচারিক আদা-ল-ত উক্ত মোকদ্দমা দা-য়-রর পূ-র্ব সম্পাদিত ১৯/১২/৮১ইং তারি-খর ১৫৪৭ নং দলিলের ক্রেতা এবং ০৭/০১/৮২ ইং তারি-খর ৩০৫নং দলি-লর ক্রেতাগণ-ক ৪৮/৮২ নং মোকদ্দমায় পক্ষ করা হয় নাই। বিজ্ঞ বিচারিক আদালত সঠিকভা-ব উল্লিখিত বিষয় তাহার রা-য়র গ-র্ভ আ-লাচনা ক-র-ছেন। উপরন্তু বিবাদী রেসপন-ডন্ট পক্ষ নালিশী খতিয়া-নর জমি নিলাম হ-য়-ছ ম-র্ম যে দাবী ক-র-ছেন এবং তৎম-র্ম তা-দর মৌরশ পওন মূ-ল নালিশী খতিয়া-নর ৪.৪৪ একর জমি প্রাপ্ত হন। সেই সম্প-র্ক কোন দালিলিক প্রমান নাই। যাহা বিজ্ঞ বিচারিক আদালত বিস্তারিত বর্ণনায় রায়ের গর্ভে আলোচনা করেছেন।

তবে বিজ্ঞ বিচারিক আদালত ৯/০৭নং অন্য মোকদ্দমায় বাদীর দাবীকৃত প্রার্থণার বাইরে স্বত্ব ঘোষনার ডিক্রী প্রদান করেছেন। নথি দৃষ্টে দেখা যায় বাদীপক্ষ ২০০/- টাকার কোর্ট ফি প্রদানে শুধুমাত্র ৪৮/৮২নং স্বত্ব মোকদ্দমার রায় ও ডিক্রী অকার্যকর, যোগসাজশী এবং বাদীর উপর বাধ্যকর নয় মর্মে ঘোষনার প্রার্থনায় আনয়ন করেছিলেন। কাজেই অত্র আদালত মনে ক-রন কোর্ট ফি ব্যতীত এবং স্বত্ব ঘোষনার প্রার্থনা আর্জি-ত উল্লিখ না থাকায় বিজ্ঞ বিচারিক আদালত নালিশী জমি-ত বাদীপ-ক্ষর স্বত্ব আ-ছ ম-র্ম যে ঘোষনা ক-র-ছেন তাহা আইন সম্মত উপা-য় হয় নাই। কা-জই স্বত্ব ঘোষনার আ-দশ হস্তক্ষেপযোগ্য হইতেছে। বিজ্ঞ বিচারিক আদালতের স্বত্ব ঘোষনার আ-দশ ব্যতীত ৪৮/৮২ নং অন্য মোকদ্দমার রায় ও ডিক্রী বিষয়ে যে আদেশ প্রদান ক-র-ছেন তাহা হস্ত-ক্ষপ-যোগ্য ন-হ”

From the above, two concurrent judgments and decree, I am of the opinion that the learned Courts below did not comment illegality by

passing the judgment in favour of the present opposite-parties. I am therefore, not inclined to interfere into this judgment and decree passed by the learned Joint District Judge, Panchagar.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The office is directed to communicate this judgment and decree to the concerned court and also directed to send down the Lower Courts Records at once.